

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: December 3, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

SECOND AMENDED SCHEDULING ORDER

On November 17, 2025, I issued an Order Granting In Part Complainant's Second Motion for Enlargement of Time and Ordering Joint Status Report. In it, I stated that the Amended Scheduling Order issued August 5, 2025, was no longer feasible. I also stated that I needed a status report before I could revise the scheduling order.

On December 1, 2025, the parties filed a joint status report. In it, among other things, Complainant Samsung Electronics America, Inc. ("SEA") states that it finalized the list of charges at issue on November 13, 2025. SEA also states that from November 14, 2025, through November 24, 2025, it produced almost a million pages of documents to OOCL, even though the Amended Scheduling Order indicated that document production was to be completed September 30, 2025. OOCL argues that SEA's delays were unfair and prejudicial.

This case has been pending since March 2024, but SEA, who brought this case, apparently only recently identified the charges at issue, and only recently produced over 900,000 pages of material. I appreciate OOCL's concerns that it could be put at a disadvantage by SEA's discovery delays, and I agree that OOCL should have a reasonable time to review the recently-produced material and conduct necessary follow-up discovery. The parties jointly suggest a fact discovery cut-off of March 27, 2026, and represent that this is a realistic time frame. Given that OOCL agrees to this timeframe despite SEA's belated productions, I will therefore adopt the parties' proposed amended scheduling order. Having said as much, because this case is already

over 20-months-old, I will be disinclined to extend discovery further without a showing of substantial need and/or unreasonable discovery delays caused by the opposing party. Further, the parties are expected to continue to work together to move this case towards its conclusion as soon as reasonably practicable.

Event	Deadline
Complete Document Productions	1/5/2026
Last Day to File Motions to Compel Discovery	1/23/2026
Complete Fact Depositions	3/27/2026
Service of Expert Reports by Complainant	4/17/2026
Service of Rebuttal Expert Reports by Respondent	5/18/2026
Completion of Expert Depositions	6/12/2026
Complainant's brief, proposed findings of fact, and appendix	7/13/2026
Respondent's brief, responses to proposed findings of fact, proposed findings of fact, and appendix	8/13/2026
Complainant's reply brief and responses to proposed findings of fact	8/27/2026

In addition, the parties remain required to file a joint status report on the first business day of the month through April 2026. (*See* Scheduling Order). The parties, however, may file the January joint status report on January 5, 2026.

**Richard C.
Ambrow Jr -S** Digitally signed by
Richard C. Ambrow Jr -S
Date: 2025.12.03
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Richard Ambrow
Administrative Law Judge